

TENTATIVE RULINGS FOR September 3, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

MARIA JUAREZ
v.
CITY OF ONTARIO
CIVSB2530654

Motion(s): **Compel Further re (1) Special Interrogatories and (2) Requests for Admissions**
Movant: (1)-(2) Defendant City of Ontario
Respondent: (1)-(2) Plaintiff Maria Juarez

PROCEDURAL/FACTUAL BACKGROUND

This is a trip-and-fall litigation. On October 17, 2026, Plaintiff Maria Juarez filed a Complaint against Defendant City of Ontario.¹ The Complaint pleads one cause of action for dangerous condition of public property against the City.² Defendant City answered.

The Complaint alleges that on November 6, 2023, Juarez tripped and fell on a mis-level, disrepair sidewalk along E. Walnut Street.

Discovery disputes. Defendant City propounded Special Interrogatories and Requests for Admissions (RFAs). On April 15, 2026, Plaintiff Juarez served her unverified responses, which included objection-only responses to all Special Interrogatories and RFAs that exceeded the 35 limit. The verification was served on April 29, 2026. (Norman Decl. at ¶¶2, 6-7, Exhs. A-C; Rudin Decl. at ¶¶3, 6, Exhs. 1, 4.)³

¹ Defendant City filed on March 26, 2026, a Cross-Complaint against Roes for indemnity, contribution, declaratory relief, breach of contract, and duty to defend.

² The Complaint also pleads premises liability and negligence against Does.

³ Attorneys Norman and Rubin's declarations in support of the motions and oppositions are identical, so the reference to one is a reference to the other.

Defendant City moves to compel further responses to Special Interrogatories #36-162 and RFAs #36-69. Plaintiff Juarez opposes.

DISCUSSIONS

Statement of the Law

A party who deems responses to propounded interrogatories (form or special) or requests for admissions as evasive or incomplete, an objection is without merit or too general, or the exercise of the option to produce documents is unwarranted can move to compel further responses. (Code Civ. Proc., §§2030.300, subd. (a), 2033.290, subd. (a).)

The motion to compel must be noticed within 45 days of receipt of the responses (plus the additional time if not personally served). (Code Civ. Proc., §§2030.300, subd. (c), 2033.290, subd. (c).) The motion must be accompanied by a declaration stating facts “showing a reasonable and good-faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion” before filing the motion. (Code Civ. Proc., §§2016.040, 2030.300, subd. (b), 2033.290, subd. (b).)

The Court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a compel further motion unless the court finds that the sanctionable party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§2030.300, subd. (d), 2033.290, subd. (d).)

Analysis

The Court finds that the parties have met and conferred and that the motions are timely filed.

Initially, Defendant argues that since the served responses failed to include a verification, they are untimely served, which means all objections were waived. However, the lack of a verification “merely renders [the fact-specific responses] untimely and therefore only creates a right to move for orders and sanctions ... *as to those responses* but does not result in a waiver of the objections made.” (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-58.) Defendant concedes the unverified objections were timely. (Norman Decl. at ¶¶5-6.)

At issue are all propounded Special Interrogatories and RFAs that exceeded the 35 limit.

Code of Civil Procedure sections 2030.030, subdivision (a)(1), and 2033.030, subdivision (a), limit the number of specially prepared interrogatories and admission requests to 35. However, subject to the responding party’s right to seek a protective order, a party may propound more than 35 interrogatories and RFAs if the propounding party attaches a declaration containing certain statutorily required information. (Code Civ. Proc., §§2030.040, subd. (a), 2030.050, 2033.040, subd. (a), 2033.050.) Here, Defense Counsel attached declarations to the propounded Special Interrogatories and RFAs which comply with the standards provided under Code of Civil Procedure sections 2030.050 and 2033.050, including the excess number is necessary because of the complexity or quantity of the issues in the case and the expedience of using this method of discovery. (Exh. A to Norman’s Decl.)

However, Plaintiff objected that the declaration was deficient, and the at issue discovery responses were duplicative, irrelevant, and sought information obtainable from other sources, including the City.

Special Interrogatories #37-86, 104-107, 113-142 were contention interrogatories, i.e., to state the facts in support of contention, identify all witnesses with knowledge to support a

contention, and identify all documents that support the contention. Special Interrogatories #87-98 ask about the incident, witnesses, and communications involving the incident. Special Interrogatories #99-103, 108-112 seek information on Juarez's injuries and damages. Special Interrogatories #143-162 ask for general background health and other information.

RFAs #36-44 seek admissions associated with the City's liability, or Plaintiff lacks evidence. RFAs #45-50 seek admissions that no prior falls, incidents, or complaints existed related to the same location. RFAs #51-52, 57-69 ask Juarez to admit facts related to causation, her percentage of fault, and her injuries. RFAs #53-56 ask Juarez to admit the property condition did not violate any statute, code, ordinance, or regulation.

In reviewing the Special Interrogatories, some of the contentions asked are similar in nature, e.g., all facts on the contention the physical condition of the sidewalk changed since its *design* (#37-39) or *creation* (#40-42), and all facts on contention that the City's creation was because of a negligent *act* (#46-49) or *omission* (#50-53). Yet the nuance is asking something different and bears out on the matters related to the elements of a Dangerous Condition of Public Property claim under Government Code section 835, or one of the City's numerous affirmative defenses.

Although on the face of the matter, this is not a complex case. It is a straightforward trip and fall on an alleged City sidewalk. However, the over 35 limit discovery requests are not inquiries into unrelated, unreasonable matters associated with determining the issues presented in the Complaint and Answer. Furthermore, even if some of the answers to the questions may primarily reside in the City's knowledge, it does not mean the City is precluded from ascertaining the information on such matters that Plaintiff knows about.

Nevertheless, some of the Special Interrogatories and RFAs are overbroad and irrelevant:

- Special Interrogatories #66-68 asked about the fact, witnesses, and documents on the contention of previous injuries occurring at the same location as Juarez's trip and fall. Although facts about prior incidents may bear on the City's knowledge to support time to correct, the injuries others may have sustained have no bearing on notice and Juarez's injuries.
- Special Interrogatories #75-86 and RFAs #53-56 concern the violation of any statute, code, regulation, or ordinance. The Complaint does not allege that the City violated any statute, code, regulation, or ordinance. Although discovery is broad, there is no basis to ask about a contention not pled in the Complaint.
- Special Interrogatories #125-136 ask for information related to car accidents before and after the subject fall, about prior falls in the past 10 years, and about falls since the subject fall. Although past injuries to similar body parts may be relevant to bear on the extent of any claimed injuries, it does not render relevant the need to disclose every car accident and other fall Juarez may have incurred, as well as witnesses and documents to those prior incidents.
- Special Interrogatories #137-143, 145 ask for facts, witnesses, and documents on all injuries in the prior 10 and 5 years, since the fall, and surgical procedures. The Court finds this to be overbroad.

- Special Interrogatories #148 and 152 ask for the identity of all health care providers and pharmacies that saw or filled prescriptions for Juarez in the past 10 years. These are overbroad
- Special Interrogatory #154 asked if Juarez was Medicare eligible. The relevancy is not demonstrated. The interrogatories that follow asking if Medicare benefits were paid associated with her injuries from this subject incident may bear on the issue of damages, but the answer to this generic question offers nothing relevant.

Based on the above, the Court grants compelling further responses to Special Interrogatories #36-65, 67-74, 87-124, 144, 147, 149-151, 153, and 155-162, and RFAs #36-52 and 57-69. The Court denies compelling further responses to Special Interrogatories #66-68, 75-86, 125-143, 145, 148, 152, and 154, and RFAs #53-56.

Sanctions. Both sides have requested sanctions against the other. Both sides prevailed in part and lost in part. Therefore, the Court finds that since neither side prevailed completely, no sanctions are awarded.

RULING

The Court rules as follow:

- (1) Grants compelling further responses to Special Interrogatories #36-65, 67-74, 87-124, 144, 147, 149-151, 153, and 155-162;
- (2) Denies compelling further responses to Special Interrogatories #66-68, 75-86, 125-143, 145, 148, 152, and 154;
- (3) Grants compelling further responses to RFAs #36-52 and 57-69;
- (4) Denies compelling further responses to RFAs #53-56;
- (5) Orders Plaintiff Juarez to serve verified further responses to (a) Special Interrogatories #36-65, 67-74, 87-124, 144, 147, 149-151, 153, and 155-162 and (b) RFAs #36-52 and 57-69 within 30 days of this ruling; and
- (6) Denies Defendant City and Plaintiff Juarez's request for sanctions.
- (7) Orders Defendant City to serve formal notice of the Court's rulings.

Dated: September 3, 2026

Judge Nicole Quintana Winter